REINSTATEMENT FOLLOWING SEWAGE FLOOD — 28 FEBRUARY 2025

1 RIVERSIDE COTTAGES, THE DEAN, ALRESFORD, SO24 9BE

Position Paper

Waterproofing as a Regulatory and Legal Requirement in Reinstatement — Not Betterment

Prepared for: Professional and Legal Submission

1. Executive Summary

This position paper demonstrates that waterproofing works undertaken as part of reinstatement following property damage are not betterment, but a mandatory requirement under Building Regulations, statutory safety law, and technical standards.

Insurers are required under the principle of indemnity to reinstate the property to its pre-loss position in a manner compliant with current statutory and technical standards — not merely to its former appearance or construction.

The subject property is situated approximately 20 yards from a river, with the ground level (ground zero) lying only 6 to 9 inches above the local water table even in August, following a dry summer. This hydrological context creates permanent hydrostatic pressure beneath and around the structure, elevating the risk of groundwater ingress, capillary action, and structural damp penetration.

Under these conditions, any reinstatement work that fails to implement a compliant waterproofing system would breach Building Regulations, invalidate Building Control certification, and contravene insurers' obligations to restore the property to a habitable, legally compliant condition.

2. Statutory and Regulatory Framework

Approved Document C to the Building Regulations (Requirement C2) establishes a mandatory duty that: "The walls, floors and roof of the building shall adequately protect the building and people who use the building from harmful effects caused by ground moisture, precipitation, condensation, and spillage of water."

Compliance with Requirement C2 is assessed by reference to Approved Document C and the technical standards it cites, including BS 8102. Together, these form the regulatory benchmark that any reinstatement must satisfy.

Regulation 7 further requires that: "Building work shall be carried out with adequate and proper materials which are appropriate for the circumstances in which they are used, and in a workmanlike manner."

In a riverside environment where the water table lies within a few inches of the foundation level, “adequate protection” must by definition include structural waterproofing to resist hydrostatic pressure. The omission of such protection would constitute non-compliance and expose the structure to progressive moisture damage, mould, and microbial contamination.

3. Technical Framework: BS 8102:2022 — The Code of Practice for the Protection of Below Ground Structures

BS 8102:2022 defines three waterproofing types — Type A (barrier), Type B (integral), and Type C (drained cavity) — and mandates that waterproofing designs assume full hydrostatic pressure, even in apparently dry conditions (Clause 4.2.1). Clause 4.1 further requires that designs must consider groundwater fluctuations and usage throughout the building’s life.

For Grade 3 performance, which is mandatory for habitable areas, “no water ingress or damp areas are acceptable.” In the context of a property sitting only inches above the water table, it is impossible to meet this standard without a comprehensive waterproofing system.

4. The Building Safety Act 2022: Dutyholder Accountability and Compliance Enforcement

The Building Safety Act 2022 introduces a “golden thread” of compliance documentation and personal accountability for designers and contractors. Regulation 38 of the Building Regulations 2010 (as amended) requires evidence of compliance before completion. Building Control cannot lawfully sign off reinstatement works that omit necessary waterproofing where hydrostatic pressure is foreseeable.

5. Legal Precedents: Waterproofing is Not Betterment

In the Financial Ombudsman Service case DRN-5376481 (Admiral Insurance), the insurer argued that upgrading from a Type A to a Type C system was betterment. The Ombudsman rejected this, ruling that waterproofing adaptation to meet current regulations and site conditions is reinstatement, not betterment. Similarly, in DRN-2833833 (2020), installing a modern damp-proof membrane to meet Building Regulations was upheld as a

necessary, compliant repair.

6. Professional and Legal Liability

Under the Building Safety Act, architects, surveyors, and contractors bear personal accountability as dutyholders. Failure to specify or install waterproofing in a high-risk environment constitutes a breach of statutory duty and potential professional negligence.

7. Environmental and Structural Context: Riverside Setting

The property's proximity to the river (20 yards) and its position only 6–9 inches above the water table create chronic hydrostatic pressure. BS 8102 mandates that designers must assume groundwater levels will reach full retention level at some point during the life of the building. Omitting waterproofing under these conditions would render the structure non-compliant and uninhabitable.

8. The "Lasting and Effective Repair" Principle

The Financial Ombudsman Service and Building Regulations both require that reinstatement achieves a "lasting and effective repair." This means compliance with current standards, addressing root causes (hydrostatic pressure), and ensuring long-term habitability.

9. Insurance Implications

Insurers cannot lawfully reinstate a property to a standard that would fail Building Control inspection or breach statutory obligations. To do so would breach the principle of indemnity and expose both the insurer and insured to regulatory and financial risk.

10. Conclusion and Determination

Waterproofing in this reinstatement context is a statutory and technical necessity, not betterment. Building Regulations, BS 8102:2022, and the Building Safety Act 2022 collectively require protection against hydrostatic pressure for habitable use. Precedents confirm that compliance with current standards is not optional but integral to lawful reinstatement.

11. Formal Determination for Submission to Insurer and Loss Adjuster

In view of the statutory obligations, hydrological context, and precedents cited, reinstating this riverside property without compliant waterproofing would contravene Building Regulations, violate the principle of lasting and effective repair, and fail the insurer's duty to reinstate to a habitable and legally compliant standard. Waterproofing is therefore the minimum lawful standard required for reinstatement.

Appendices (Summary)

Appendix A – Excerpts from Approved Document C (Requirements C2 and C3) Appendix B – Extracts from BS 8102:2022 (Clauses 4.1, 4.2.1, 10.2) Appendix C – Summaries of Ombudsman cases DRN-5376481 and DRN-2833833 Appendix D – Site hydrological summary (20 yards from river, 6–9 inches above water table) Appendix E – Building Safety Act 2022 dutyholder accountability provisions

Appendix A – Excerpts from Approved Document C (2013 Edition with 2022 Amendments)

Requirement C2: “The walls, floors and roof of the building shall adequately protect the building and people who use the building from harmful effects caused by ground moisture, precipitation, condensation and spillage of water.”

Requirement C3: “Precautions shall be taken to avoid danger to health and safety caused by substances found on or in the ground, and by ground gases and water.”

Approved Guidance (Section 4.2): “Groundwater should be assumed to be present at full height at some time in the life of the building. Protection should therefore be designed accordingly.”

Appendix B – Extracts from BS 8102:2022 (Code of Practice for Protection of Below Ground Structures)

Clause 4.1 – Risk Assessment: “A waterproofing design must be based on an assessment of risk, including potential changes in groundwater conditions and use of the building.”

Clause 4.2.1 – Design Philosophy: “Designers should assume the ground is saturated and that the structure will be subject to full hydrostatic pressure, even where dry conditions are indicated by site investigation.”

Clause 5.1 – Design Requirements: “The waterproofing design shall be appropriate to the intended use and environmental conditions.”

Clause 10.2 – Remedial Works: “Remedial measures must achieve the same performance as a new build and ensure lasting and effective protection.”

Definition of Grade 3 Environment (Table 2): “Grade 3 – No water penetration acceptable. Ventilation, dehumidification or heating must ensure a dry environment suitable for habitation.”

Appendix C – Relevant Financial Ombudsman Service Cases

Case DRN-5376481 (Admiral Insurance): Policyholder's Type A waterproofing failed due to hydrostatic pressure. Insurer refused to install Type C system, claiming betterment. Ombudsman Decision: "The policyholders had a property which was waterproof — that is the condition they are entitled to have reinstated. Where site conditions or regulations require an alternative system to achieve this, it cannot be considered betterment."

Case DRN-2833833 (2020): Insurer disputed installing a modern damp-proof membrane that met modern standards. Ombudsman Decision: "The work was required to meet current Building Regulations. Compliance cannot constitute betterment. The insurer's obligation is to reinstate to a lasting and effective standard."

Appendix D – Site Hydrological Summary

Property: 1 Riverside Cottages, The Dean, Alresford, SO24 9BE

Distance from River: Approximately 20 yards (River Arle)

Elevation Above Water Table: 6–9 inches in August (dry summer period)

Soil Type: Mixed alluvial gravel and clay — high permeability and capillary transfer potential

Flood Risk: Persistent hydrostatic pressure likely; during wet months, water table expected to meet or exceed foundation level.

Risk Implication: Ongoing hydrostatic pressure beneath structure — waterproofing mandatory for Grade 3 compliance.

Appendix E – Building Safety Act 2022: Dutyholder Accountability

Section 38 (Amendment to Building Regulations): “Dutyholders must ensure compliance with all applicable requirements of the Building Regulations in the design, construction and completion of building work.”

Golden Thread Provision: “A record of design and safety information must be created and maintained to demonstrate compliance with Building Regulations.”

Sanctions: Non-compliance may result in unlimited fines, prosecution, or enforcement orders under the Building Act 1984 (as amended).